

**Court No. - 39**

**Case :-** WRIT - C No. - 8952 of 2021

**Petitioner :-** Shivraj

**Respondent :-** State of U.P. and Another

**Counsel for Petitioner :-** Ravindra Kumar

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Mrs. Sunita Agarwal,J.**

**Hon'ble Deepak Verma,J.**

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 2.

Challenging the provisional assessment notice dated 2.5.2019, it is contended by the learned counsel for the petitioner that there exists a domestic electricity connection bearing No.6236/781178 of 1 KW in the name of the petitioner's mother, namely, Urmila Devi, with regard to the premises in question. The petitioner is presently living in the same house along with his mother. The assertion is that allegation of theft of electricity as alleged in the show cause notice dated 2.5.2019, is false. In none of the paragraphs, the petitioner has stated that any objection has been filed by him to the provisional assessment notice dated 2.5.2019.

Sri Baleshwar Chaturvedi, learned counsel on behalf of respondent no. 2 states that he has not received any instructions as to whether any final assessment order has been passed.

It is noted that the petitioner has a remedy of filing objection to the show cause notice dated 02.05.2019 in accordance with the provisions of Section 126 (3) of the Electricity Act, 2003 and Clause 8.1 (a) of the Electricity Supply Code, 2005.

The writ petition is, therefore, **disposed of** with the observation that the petitioner may file his objection to the provisional assessment notice dated 02.05.2019 along with a copy of this order within a period of two weeks. In case, such an objection is filed, the respondent no. 2 shall be under obligation to consider all the points of objections raised by the petitioner before passing final assessment order.

In case any final assessment order has already been passed or recovery has been initiated pursuant to the said order, the same shall be subject to the fresh decision to be taken by the respondent no. 2 in accordance with law.

It is however, made clear that, in case, the petitioner fails to file an objection within the time given above, it would be open for the respondents to proceed, in accordance with law.

The writ petition is, accordingly, **disposed of**.

**Order Date :- 12.3.2021**

Meenu